

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/10/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
6	30-2026-01556931 Northwood Place Apartments LLC vs. Ostrowski	The Court has read and considered the Plaintiff's Motion to Deem Request for Admissions Set One Admitted (ROA 35). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's Request for Admission Set One be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Lana Ostrowski on May 21, 2026, be deemed admitted. The Court orders the Defendant, Lana Ostrowski, forthwith to pay a sanction in the amount of \$810 (Attorneys' Fees for 2 hours at \$375 an hour and \$60 filing fee) to Plaintiff's Counsel. This sum shall be made payable to "Kimball, Tirey & St. John, LLP" within 7 business days of service of this order, and shall be delivered to the Kimball, Tirey & St. John, LLP, 2040 Main Street, Suite 500, Irvine, CA 92614. If any party is required to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorney's fees and costs.

		The Court Orders Plaintiff to provide notice of the Court's ruling.
7	30-2026-01564845 BRE-FMCA, LLC vs. Rios	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 25) and Plaintiff's Opposition (ROA 28). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 10). A registered process server who made multiple attempts at personal service may proceed with substituted service under Code of Civil Procedure § 415.20. Here, the registered process server, George Craig (#2019267578), signed under penalty of perjury that he made multiple attempts to serve the defendant personally before proceeding with substituted service. On the third attempt to serve, the registered process server provided the documents to a woman at the premises, who answered the door, provided a physical description, took the paperwork, and refused to provide the registered process server with her name. There is no indication that "Jane Doe" was not an occupant of the household or refused to accept the documents. Case law such as <i>Zirbes v. Stratton</i> (1986) 187 Cal. App. 3d 1407, 1416-1417 allows for substituted service, which is reasonably calculated to give notice – the circumstances here are reasonable that it would give notice to the Defendant. The Court DENIES the Motion to Quash Service of Summons. Defendant is ordered to file a responsive pleading within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
8	30-2026-01567293 Nguyen vs. Rios	The Court has read and considered the Defendant's Motion to Strike (ROA 15) and the Complaint (ROA 2). The Court DENIES the Motion to Strike. The Court orders the Defendants to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
9	30-2026-01569587 Bridge WF Ca Crystal View LP vs. Vickers	The Court has read and considered the Defendants' Motion to Quash Service of Summons (ROA 13 & 18). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 8 & 10). California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, registered process server Justin Martin (2655) declared under penalty of perjury that he personally served Ms. Vickers on Thursday, May 14, 2026, at 8:39 PM (ROA 10) and Ms. Sims on Saturday, May 16, 2026, at 1:51 PM (ROA 8). Defendants have

		provided no evidence to rebut the presumption under Evidence Code Section 647 other than their own self-serving statements that they were not personally served and that the documents were left on the doorstep. The Court DENIES the Defendants' Motion to Quash. Defendants are ordered to file a responsive pleading within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01571329 Posada vs. De La Luz Rivera	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 13) and the Complaint (ROA 1). The Court takes Judicial Notice of the Proof of Service by Posting (ROA 28, 30, 32, & 34) and the Application to Serve Summons by Posting (ROA 11). The Court did not sign an order to serve summons by posting in this matter. Service of the Summons is not proper as there is no Court order to serve by posting and mailing in this matter. The Application to Serve Summons by Posting is defective because it lacked a separate due diligence statement for each defendant, signed by the declarant. The Court DENIES without prejudice the Application for Order to Serve via Posting. The Court OVERRULES the Demurrer but finds that service of the Complaint was improper. Plaintiff is ordered to serve notice of the Summons and Complaint in compliance with the California Code of Civil Procedure. Once the Defendants are served with the Summons and Complaint, Defendants have 10 calendar days to file a responsive pleading. The Plaintiff is ordered to serve notice of the Court's ruling.
11	30-2026-01571601 Anaheim Multifamily LLC vs. Gutierrez	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
12	30-2026-01567675 Catherine S. Burnett As Trustee Of The Estela Gomez Trust vs. Romo	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 19) and the Complaint (ROA 2). A demurrer to a complaint challenges the complaint's facial sufficiency and that of its attachments to the complaint's four corners only. Defendant raises issues of ownership, the ability to sue, and the facts surrounding how the Defendant became an occupant of the premises, which are issues to be determined in a trial.

		The Court OVERRULES the Demurrer. Defendant is ordered to file an Answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
ExParte	30-2026-01569971 CJS Pinemeadows Apartments, L.P. vs. Alexander Gonzales	The Court has read and considered the Plaintiff's Ex Parte Application for an Order Striking Prejudgment Claimants Fantina Velazquez and Miguel Zaragoza's Answer to the Complaint (ROA 41). The Plaintiff failed to attach "Exhibit A" as referenced in their moving papers. The Court takes Judicial Notice of the Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 12), Complaint (ROA 2), Prejudgment Claim of Right to Possession filed by Miguel Zaragoza (ROA 15), and Prejudgment Claim of Right to Possession filed by Fantina Velazquez (ROA 13) The Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 12) shows that a registered process server substitute served Occupant Yesenia Cruz Lara on Monday, May 18, 2026, at 9:33 PM, in addition to posting the documents "in a conspicuous place on the premises so that likely to give actual notice to an occupant" and mailed the documents on the same date. Prejudgment Claims of Right to Possession were filed by Miguel Zaragoza and Fantina Velazquez on June 3, 2026. The CP10.5 Form for the Prejudgment Claim to Right to Possession states that forms must be submitted within 10 days from the date of service. The last day to file the Prejudgment Claim to Right of Possession form would have been May 28, 2026, by 11:59 PM. The Court finds that Claimants Fantina Velazquez and Miguel Zaragoza failed to timely file a prejudgment claim of right to possession with the Court and therefore each of their Answers will be stricken. The Court Clerk is directed to strike the Prejudgment Claims filed by Fantina Velazquez and Miguel Zaragoza on June 3, 2026, as untimely and strike their Answers. The Plaintiff is ordered to provide notice of the Court's ruling to all parties, as well as Fantina Velazquez and Miguel Zaragoza.